

"**Rate-payers.**" — By persons *paying* to the church and poor must be understood persons *liable to pay*, though they may not have actually paid (*b*); but it seems to be a necessary qualification that they should have been *rated* (*c*), unless, perhaps, the name has been omitted by mistake (*d*), or there is the taint of fraud (*e*).

11. **Mode of electing.** — With respect to the *mode* in which the votes are to be taken, it is clear that the election cannot be conducted by ballot, not only on the general principle that the ballot is a form of proceeding unknown to the common law of England (*f*), but also on the ground, that the right of voting in the election of a clerk is a privilege coupled with a *public duty*, and the trustees have a right to be satisfied that the voters, in the exercise of their right, have fairly and honestly discharged their duty; whereas in election by ballot there are no means of ascertaining for whom each particular elector voted (*g*). The choice of the candidate must therefore be determined by one of the modes known to the common law, viz. either by poll or a show of hands (*h*). However, the *cestuis que trust* may *expressly* agree among themselves that they will abide by the declaration of the result of the ballot, and will ask no questions how the individual votes were given; or such a contract may be *inferred* from long and clear antecedent usage (*i*). But it is said an agreement of this kind can apply only to each particular election as it occurs, for any one parishioner has a right

31 & 32 Vict. c. 109, paying such rates cannot, it is conceived, be regarded as necessary in any case for a qualification to vote.]

(*b*) See *Attorney-General v. Forster*, 10 Ves. 339, 346.

(*c*) *Edenborough v. Archbishop of Canterbury*, 2 Russ. 110.

(*d*) *Edenborough v. Archbishop of Canterbury*, 2 Russ. 110.

(*e*) S. C. ib. 111.

(*f*) *Faulkner v. Elger*, 4 Barn. & Cress. 449.

(*g*) *Edenborough v. Archbishop of Canterbury*, 2 Russ. 105, 108, 109, *per* Lord Eldon.

(*h*) See ib. 106, 110. [Some doubt has, however, been thrown upon this in the recent case of *Shaw v. Thompson*, 3 Ch. D. 233, in which V. C. Bacon intimated an opinion that as voting by ballot had become common, and no objection could now be taken as in the case of *Faulkner v. Elger*, *ubi sup.* to a ballot on the ground that it afforded no opportunity for a scrutiny, an election by that means would be valid.]

(*i*) See *Edenborough v. Archbishop of Canterbury*, 2 Russ. 105, 106, 108, 109.